

amend a pleading is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

The motion is unopposed. Having considered the nature of the proposed amended pleading and the totality of the circumstances, including the current procedural posture of the case, the Court grants Plaintiffs' request for leave to amend their Complaint.

2. Motion to Continue Trial

The prior trial date has been vacated at this point and the Motion to Continue Trial is moot.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is GRANTED. Plaintiffs are granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
2. The Motion to Continue Trial is DENIED as moot.

4. 9:00 AM CASE NUMBER: C23-00358

CASE NAME: RAY SY VS. RODNEY DOTSON

***HEARING ON MOTION IN RE: TO CONTINUE TRIAL**

FILED BY: SEVILLA, GIN IVY

TENTATIVE RULING:

See Line 3 above.

5. 9:00 AM CASE NUMBER: C23-02467

CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.

***HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT**

FILED BY: CRAVAT, CHRISTINA CUCCIA

TENTATIVE RULING:

Plaintiff Christina Cuccia Cravat's Motion for Leave to File a Second Amended Complaint (SAC) is **continued** by the Court to April 27, 2026, at 9:00 a.m.

California Rule of Court 3.1324 requires that a motion to amend be accompanied by a separate declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier. The declaration must be signed under penalty of perjury. (Code Civ. Proc. § 2015.5.)

The Declaration of Michael J. Reed submitted in support of this motion is not signed under penalty of perjury and therefore lacks evidentiary value. The declaration otherwise substantially complies with Rule 3.1324(b), as it identifies the retained and new causes of action, explains that the amendment is necessary to consolidate all related claims consistent with the Court's consolidation order, and documents the meet-and-confer history in reasonable detail. A redline of the proposed SAC against